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MAINTENANCE AGREEMENT

THIS MAINTENANCE AGREEMENT, made and entered into this _____ day of _____, 19____ by and between PASCO COUNTY, a political subdivision of the State of Florida, acting by and through its Board of County Commissioners, the governing body therefore, hereinafter referred to as the "County", and the MEADOW POINTE COMMUNITY DEVELOPMENT DISTRICT, a special purpose unit of local government established pursuant to Chapter 190, Florida Statutes, with its principal mailing address at P.O. Box 271772, Tampa, Florida 33688, hereinafter referred to as the "CDD",

W I T N E S S E T H:

WHEREAS, the Board of County Commissioners of Pasco County, Florida, hereby determines that the CDD is a special purpose unit of local government organized for the purpose of constructing and maintaining common properties serving Meadow Pointe, a residential subdivision, situate within Pasco County, Florida; and

WHEREAS, incident to development of said subdivision, the CDD has installed landscaping and irrigation facilities to support the landscaping within right-of-way conveyed to the said County by the CDD, and incident to such installation the Board of County Commissioners of Pasco County has requested a maintenance agreement as to said facilities, which is agreeable to the CDD; and

WHEREAS, the Board of County Commissioners of Pasco County, Florida, is satisfied that such properties wherein the improvements are situated or the landscaping is being planted are not needed for County purposes; it is

NOW, THEREFORE, in consideration of the foregoing premises, and in consideration of the of the sum of Ten ($10.00) Dollars and other good and valuable considerations, to each party paid, the receipt of which is hereby acknowledged, the parties agree as follows:

1. The CDD hereby agrees to maintain the landscaping and irrigation within the areas depicted on the attached Exhibit "A", in a safe and clean condition during the term of this agreement, and shall, following notice, trim vegetation to avoid any clear sight violation.

2. The CDD shall maintain public liability and property damage insurance in the amount of $1,000,000. Such insurance shall name the Pasco County Board of County Commissioners as an additional insured and shall bear the statement of the insurance company that the insurance shall not be modified or cancelled without notification to the Board of County Commissioners. The CDD further agrees to defend and hold the County harmless from all causes of action which may arise as a result of the use or maintenance of the properties wherein the landscaping and

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irrigation facilities are located on the properties described on Exhibit "A".

3. This agreement in no way allows the placement of advertisement within the properties being used by the CDD or upon the structures located therein.

4. If the CDD defaults on any of the conditions of this agreement, it shall be given notice in writing and a reasonable time to correct the same. In the event the CDD fails to correct such default within a reasonable time after receipt of notice of the same, the County may, at its option, terminate the rights and privileges created by the acceptance of this agreement.

5. Should any provision herein be, for any reason, found to be invalid, it is understood and agreed that such condition shall not in any way affect any other provisions.

6. It is expressly stipulated that this agreement is a license for permissive use only and that the use of these facilities pursuant to this agreement shall not operate to create or to vest any property right in the CDD if or when Pasco County decides to further exploit the County right-of-way for any reason. The CDD further agree to obtain a County right-of-way use permit.

7. This agreement may be terminated by Pasco County at such time as the County seeks to further exploit the County right-of-way. This agreement shall be for an initial term of ten (10) years, and shall automatically renew thereafter on an annual basis.

IN WITNESS WHEREOF, the parties have caused this instrument to be executed the day and year first above written.

PASCO COUNTY, a political subdivision of the State of Florida, acting by and through its Board of County Commissioners

In the Presence of:

Rebecca S. Hauk/D.C.

Print Name Rebecca S. Hauk

By: _____ (SEAL)

3/21/95

Print Name _____

APPROVED AS TO LEGAL FORM AND CONTENT

OFFICE OF THE COUNTY ATTORNEY

By: _____ (SEAL)

MEADOW POINTE COMMUNITY
DEVELOPMENT DISTRICT

By: _____
Donald A. Buck,
Chairman, Board of Supervisors

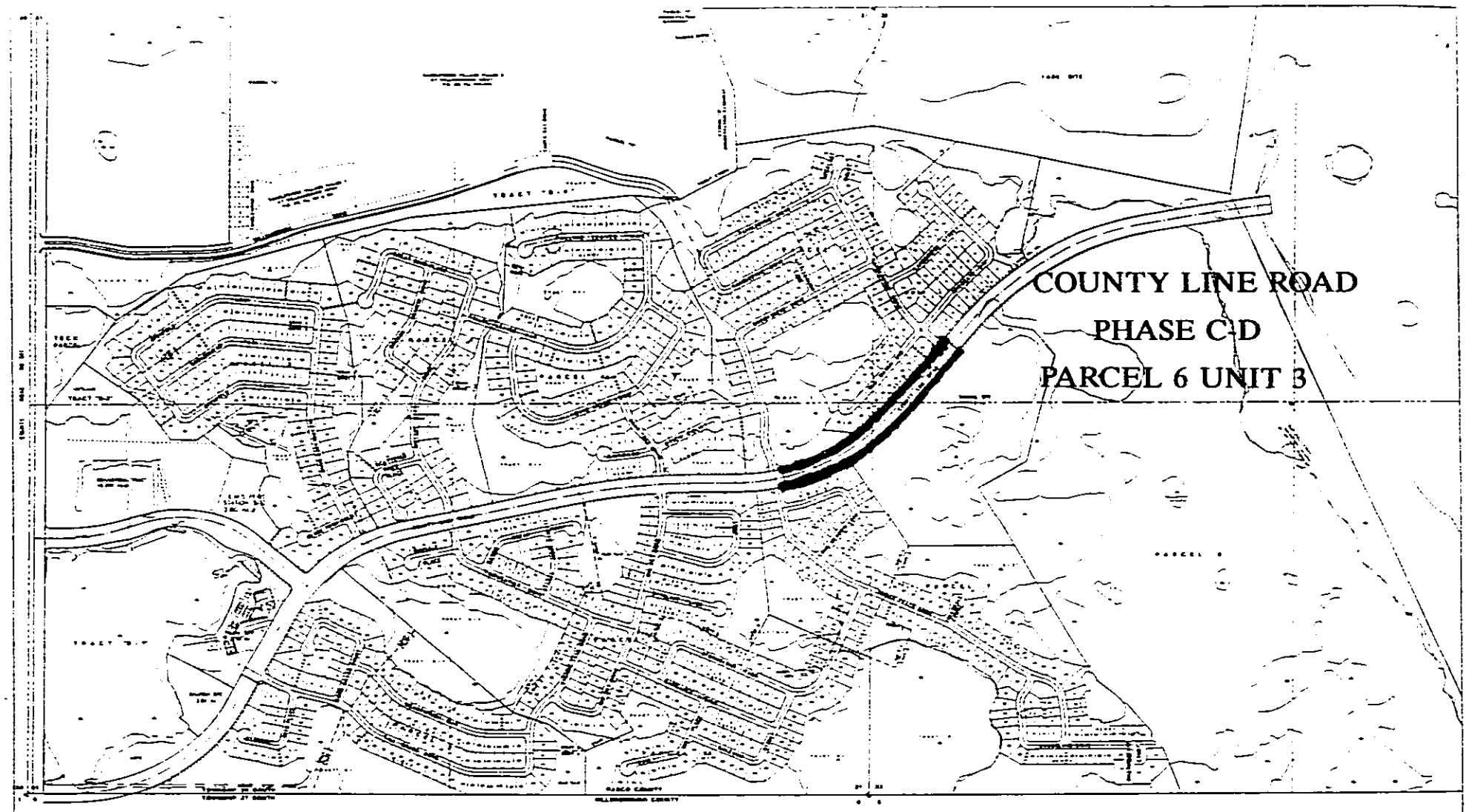
Pamela Braun

Print Name Pamela Braun

John R. Tobey

Print Name John R. Tobey

EXHIBIT "A"



MEADOW POINTE

C2511

ACORD. CERTIFICATE OF INSURANCE

ISSUE DATE (MM/DD/YY)
10/31/94

PRODUCER
INQUIRIES: 813-796-6666
Acoroia of Central Florida
P.O. Box 31666
Tampa, FL 33631-3666

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW.

INSURED
Metropolitan Systems Inc.
etal
3014 Horatio Street
Tampa FL 33609

COMPANIES AFFORDING COVERAGE

COMPANY LETTER A: Hartford Insurance Co of Se
COMPANY LETTER B:
COMPANY LETTER C: Hartford Insurance Company
COMPANY LETTER D: Commerce Mutual Ins Co
COMPANY LETTER E:

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COVERAGES

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED, NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

CO LTR	TYPE OF INSURANCE	POLICY NUMBER	POLICY EFFECTIVE DATE (MM/DD/YY)	POLICY EXPIRATION DATE (MM/DD/YY)	LIMITS	
A	GENERAL LIABILITY	21UENLC0200	10/31/94	7/01/95	GENERAL AGGREGATE	$ 1000000
	X COMMERCIAL GENERAL LIABILITY				PRODUCTS-COMP/OP AGG.	$ 1000000
	CLAIMS MADE X OCCUR.				PERSONAL & ADV. INJURY	$ 1000000
	OWNER'S & CONTRACTOR'S PROT.				EACH OCCURRENCE	$ 1000000
					FIRE DAMAGE (Any one fire)	$ 50000
					MED. EXPENSE (Any one person)	$ 5000
	AUTOMOBILE LIABILITY				COMBINED SINGLE LIMIT	$
	ANY AUTO					
	ALL OWNED AUTOS				BODILY INJURY (Per person)	$
	SCHEDULED AUTOS					
	HIRED AUTOS				BODILY INJURY (Per accident)	$
	NON-OWNED AUTOS					
	GARAGE LIABILITY				PROPERTY DAMAGE	$
C	EXCESS LIABILITY	21XHULB9907	10/31/94	7/01/95	EACH OCCURRENCE	$ 1000000
	X UMBRELLA FORM				AGGREGATE	$ 1000000
	OTHER THAN UMBRELLA FORM					
C	WORKER'S COMPENSATION AND EMPLOYERS' LIABILITY	12506 FLORIDA OPERATIONS ONLY	3/03/94	3/03/95	STATUTORY LIMITS	
					EACH ACCIDENT	$ 100000
					DISEASE—POLICY LIMIT	$ 500000
					DISEASE—EACH EMPLOYEE	$ 100000
	OTHER					

DESCRIPTION OF OPERATIONS/LOCATIONS/VEHICLES/SPECIAL ITEMS
CERTIFICATE HOLDER IS NAMED AS ADDITIONAL INSURED WITH RESPECTS TO GENERAL LIABILITY.
GENERAL LIABILITY COVERAGE INCLUDES HOLD HARMLESS

OR 3406 P 1088

CERTIFICATE HOLDER

~~PASCO COUNTY~~
OFFICE OF COUNTY ATTORNEY
7530 LITTLE ROAD
NEW PORT RICHEY, FL 34654

CANCELLATION

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, THE ISSUING COMPANY WILL ENDEAVOR TO MAIL 10 DAYS WRITTEN NOTICE TO THE CERTIFICATE HOLDER NAMED TO THE LEFT, BUT FAILURE TO MAIL SUCH NOTICE SHALL IMPOSE NO OBLIGATION OR LIABILITY OF ANY KIND UPON THE COMPANY, ITS AGENTS OR REPRESENTATIVES.

AUTHORIZED REPRESENTATIVE

ACORD 25-S (7/90)

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